

House File 163

H-1259

1 Amend House File 163 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. NEW SECTION. 29D.1 Information sharing —
5 school safety.

6 1. For purposes of this section:

7 a. (1) "*Covered entity*" includes all of the following:

8 (a) A criminal or juvenile justice agency as defined in
9 section 692.1.

10 (b) A city, county, or township.

11 (c) A state agency.

12 (d) Any service or support provider that contracts with an
13 entity described in subparagraph divisions (a) through (c).

14 (2) "*Covered entity*" does not include the judicial branch.

15 b. "*School*" means all of the following:

16 (1) A school corporation organized under chapter 274.

17 (2) A nonpublic school as defined in section 280.2.

18 (3) A charter school established pursuant to chapter 256E.

19 (4) A charter school or innovation zone school established
20 pursuant to chapter 256F.

21 (5) Any service or support provider that contracts with an
22 entity described in subparagraphs (1) through (4).

23 c. "*State agency*" means a department, board, bureau,
24 commission, or other agency or authority of the state of Iowa.

25 2. Notwithstanding any provision of law to the contrary,
26 including section 22.7, any covered entity or school that
27 provides services to students enrolled in kindergarten through
28 grade twelve who are experiencing or at risk of an emotional
29 disturbance or mental illness, or who pose an articulable and
30 significant threat to the health and safety of any person,
31 shall, upon the request of another covered entity or school
32 when the covered entity or school is acting as part of a
33 multidisciplinary school safety assessment team established
34 pursuant to section 280.36, share records or information that
35 are reasonably necessary to ensure access to appropriate

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(amending this HF 163 to CONFORM to SF 583)

1 services for such students, or to ensure the safety of such
2 students or others, with any other such covered entity or
3 school.

4 3. Notwithstanding any provision of law to the contrary,
5 including section 22.7, a multidisciplinary school safety
6 assessment team established pursuant to section 280.36 may
7 request and receive records or information that are related to
8 students enrolled in kindergarten through grade twelve who are
9 experiencing or at risk of an emotional disturbance or mental
10 illness, or who pose an articulable and significant threat to
11 the health and safety of any person.

12 4. When acting as part of a multidisciplinary school safety
13 assessment team established pursuant to section 280.36, a
14 covered entity and a school may communicate, collaborate, and
15 coordinate efforts with other covered entities to best serve
16 students enrolled in kindergarten through grade twelve who are
17 experiencing or at risk of an emotional disturbance or mental
18 illness, or who pose an articulable and significant threat to
19 the health and safety of any person.

20 Sec. 2. Section 256E.7, subsection 2, Code 2025, is amended
21 by adding the following new paragraphs:

22 NEW PARAGRAPH. *od.* Be subject to and comply with the
23 requirements of section 29D.1 relating to the sharing of
24 records or information, and the communication, collaboration,
25 and coordination of efforts to best serve students, in the same
26 manner as a school district.

27 NEW PARAGRAPH. *ot.* Be subject to and comply with the
28 requirements of section 280.36 relating to the establishment of
29 a multidisciplinary school safety assessment team in the same
30 manner as a school district.

31 Sec. 3. Section 256F.4, subsection 2, Code 2025, is amended
32 by adding the following new paragraphs:

33 NEW PARAGRAPH. *od.* Be subject to and comply with the
34 requirements of section 29D.1 relating to the sharing of
35 records or information, and the communication, collaboration,

1 and coordination of efforts to best serve students, in the same
2 manner as a school district.

3 NEW PARAGRAPH. *r.* Be subject to and comply with the
4 requirements of section 280.36 relating to the establishment of
5 a multidisciplinary school safety assessment team in the same
6 manner as a school district.

7 Sec. 4. NEW SECTION. 280.36 Multidisciplinary school safety
8 assessment teams — immunity.

9 1. The board of directors of each school district and the
10 authorities in charge of each accredited nonpublic school may
11 establish a multidisciplinary school safety assessment team.
12 If established, the multidisciplinary school safety assessment
13 team shall coordinate resources and assess and intervene when a
14 student enrolled in the school district or accredited nonpublic
15 school exhibits behavior that may pose a threat to the safety
16 of the school district or accredited nonpublic school,
17 employees of the school district or accredited nonpublic
18 school, or other student enrolled in the school district or
19 accredited nonpublic school.

20 2. The multidisciplinary school safety assessment team may
21 consist of any of the following members:

- 22 *a.* A local law enforcement official.
- 23 *b.* A representative from juvenile court services.
- 24 *c.* A mental health professional.
- 25 *d.* A social services representative.
- 26 *e.* A school official.

27 3. The board of directors of a school district or the
28 authorities in charge of an accredited nonpublic school
29 may enter into an agreement with another school district,
30 accredited nonpublic school, charter school, or innovation zone
31 school to create a multidisciplinary school safety assessment
32 team that shall coordinate resources among the schools and
33 assess and intervene when a student enrolled in either school
34 exhibits behavior that may pose a threat to the safety of
35 either school, employees of either school, or students enrolled

1 in either school.

2 4. A multidisciplinary school safety assessment team may do
3 any of the following:

4 a. Share or request records or information in accordance
5 with section 29D.1.

6 b. Request records from the state court administrator.

7 5. In addition to any other immunity available, any person
8 who, in good faith with reasonable cause and without malice,
9 acts to report, investigate, or cause any investigation to
10 be made into the activities of a student or other person as
11 such report or investigation relates to conduct or information
12 indicating that the student or person poses a credible danger
13 of serious bodily injury or death to one or more students,
14 school employees, or others on school property shall be immune
15 from all criminal and civil liability that might otherwise
16 be incurred or imposed as the result of the making of such a
17 report, investigation, or disclosure.

18 6. Notwithstanding sections 22.7, 232.147, 232.149,
19 232.149A, and 232.151, a representative from juvenile court
20 services who is a member of a multidisciplinary school safety
21 assessment team may share records or information among the
22 other members of the multidisciplinary school safety assessment
23 team if the records or information are reasonably necessary to
24 ensure the safety of students or others, and if the records or
25 information are not sealed by a court order.

26 7. a. Notwithstanding sections 22.7, 232.147, 232.149,
27 232.149A, and 232.151, upon the request of a multidisciplinary
28 school safety assessment team, the state court administrator
29 shall disclose to the multidisciplinary school safety
30 assessment team a record if the record is reasonably necessary
31 to ensure the safety of students or others, and if the record
32 is not sealed by a court order.

33 b. Paragraph "a" shall not be construed to prohibit a
34 multidisciplinary school safety assessment team from submitting
35 an application to the state court administrator for release of

1 a record pursuant to any other authority established by law.>
2 2. Title page, by striking lines 1 through 3 and inserting
3 <An Act relating to school safety by requiring the creation
4 of school safety assessment teams and authorizing information
5 sharing between certain governmental agencies.>

STONE of Winnebago